

23STCV02798 23STCV02798

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Case Number: 23STCV02798 Hearing Date: July 1, 2026 Dept: 732

Shaheriav Kham v. Los Angeles County Metropolitan

Transportation Authority, et al.

Wednesday, July 1, 2026

CASE NUMBER: 23STCV02798

UNOPPOSED

Defendants ABM Industry Groups, LLC, Morlin Asset Management, LP, and
Los Angeles County Metropolitan Transportation Authority's Motion for
Terminating Sanctions or to Dismiss Complaint for Want of Prosecution

Facts:

This is an action for premises liability. The Complaint alleges as follows.

Plaintiff Shaheriav Kham ("Plaintiff") slipped and fell on a puddle at Union
Station in Los Angeles. (Complaint at p. 4.)

Procedural History: Plaintiff

filed the Complaint on February 8, 2023, alleging one cause of action for
premises liability.

The

court on October 24, 2025, granted Defendant ABM Industry Groups, LLC's ("ABM")
motion to continue trial.

On

October 30, 2024, the court granted nonparty County of Los Angeles' motion to withdraw answer.

On

December 6, 2024, the court denied Defendant ABM's motion to compel responses to form interrogatories from Plaintiff as moot.

On

April 28, 2025, the court denied Defendant ABM's motion to compel further as moot, following an informal discovery conference.

Defendant

Los Angeles County Metropolitan Transit Authority ("LACMTA") had default entered against it on July 28, 2025.

On

July 31, 2025, Jesse Terrell's motion to be relieved as counsel for Plaintiff was granted.

On

October 15, 2025, the court granted Defendant LACMTA's motion for relief from default.

LACMTA

filed an answer on February 2, 2026.

On February 10, 2026, this matter was transferred from Department 27 to Department 61.

Defendants filed the present motion for terminating sanctions or to dismiss case for want of prosecution on

Analysis

I.

MOTION

FOR TERMINATING SANCTIONS

The court may impose terminating sanctions, including an order striking pleadings, an order dismissing an action, or an order rendering judgment by default against a party, for conduct that is a misuse of the discovery process. (Code Civ. Proc., § 2023.030.) This conduct includes “[f]ailing to respond or to submit to an authorized method of discovery,” and “[d]isobeying a court order to provide discovery.” (Code Civ. Proc., § 2023.010.)

Ultimate discovery

sanctions are justified where there is a willful discovery order violation, a history of abuse, and evidence showing that less severe sanctions would not produce compliance with discovery rules.

(Van Sickle v. Gilbert (2011)

196 Cal.App.4th 1495, 1516.) Dismissal

is a drastic measure, and terminating sanctions should only be ordered when there has been previous noncompliance with a rule or order and it appears a less severe sanction would not be effective.

(Link v. Cater (1998) 60 Cal.App.4th

1315, 1326.) “[A] penalty as severe as

dismissal or default is not authorized where noncompliance with discovery is caused by an inability to comply rather than willfulness or bad faith.” (Brown v. Sup. Ct. (1986) 180 Cal.App.3d 701, 707.)

Defendants ABM Industry

Groups, LLC (“ABM”), Morlin Asset Management, LP (“Morlin”), and Los Angeles County Metropolitan Transportation Authority (“LACMTA”, or collectively “Defendants”) move for terminating sanctions against Plaintiff Shaheryar Khan (named in the complaint as “Shaheriav Kham”, referred to herein as “Plaintiff”) for violation of discovery obligations. Defendants alternately seek discretionary dismissal under Code of Civil Procedure § 583.410, based on Plaintiff’s delay in prosecution.

Defendants seek relief on

the following facts. Plaintiff filed the complaint on February 8, 2023, and was then represented by counsel. Plaintiff did not initially serve responses to Defendant ABM’s discovery until ABM filed a motion to compel on November 4, 2024, after which Plaintiff served responses consisting only of objections, which had by then been waived. (Lescaille Decl. ¶¶ 8–9.) ABM filed a motion to compel further, which was heard on April 28, 2025, which was resolved when Plaintiff’s counsel stated that the attorney-client relationship had broken

down, a motion to be relieved as counsel was imminent, and volunteered to orally withdraw the objections. (Lescaille Decl. ¶¶ 10–12.) The court granted the motion to be relieved as counsel brought by Plaintiff's former attorney on July 31, 2025, after which Plaintiff appeared at hearings to represent that he was seeking new counsel. (Lescaille Decl. ¶¶ 13–14.)

Plaintiff's deposition

was initially noticed on February 4, 2025, and scheduled for April 18, 2025, though the deposition (and the then-calendared trial date of June 23, 2025) had to be rescheduled due to the motion to be relieved as counsel. (Lescaille Decl. ¶¶ 16–17.) A second deposition notice was served on February 4, 2026, with the deposition to take place on March 10, 2026, but Plaintiff did not object or appear, and a certificate of non-appearance was taken on that date. (Lescaille Decl. ¶¶ 4–5, Exh. C.)

Plaintiff has also failed

to appear for his independent medical examination, noticed to take place on November 3, 2026. (Lescaille Decl. ¶ 22.)

Plaintiff has served no

discovery in this action. (Lescaille Decl. ¶ 25.) And despite appearing for hearings following the withdrawal of his counsel on July 31, 2025, October 15, 2025, December 8, 2025, and January 30, 2026, Plaintiff has not appeared for his deposition, has not served discovery, and has filed no opposition to the present motion.

Terminating sanctions are

of doubtful availability on the above facts. Although there appears to be little question concerning Plaintiff's abdication of his discovery obligations, he has heretofore not been subject to any order compelling him to provide responses or appear for deposition. Dismissing the case for failure to comply with discovery obligations would be a hard sanction where no prior order had directed compliance upon the penalty of lesser sanctions.

However, Defendants have

shown entitlement to dismissal pursuant to the court's discretionary power to dismiss a case for lack of prosecution under Code of Civil Procedure § 583.410. Under that statute, "The court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the

circumstances of the case.” (Code Civ. Proc. § 583.410,, subd. (a).) Dismissal may be granted upon the following applicable conditions:

The action is not brought to trial within the following times:

(A) Three years after the action is commenced against the defendant unless otherwise prescribed by rule under subparagraph (B).

(B) Two years after the action is commenced against the defendant if the Judicial Council by rule adopted pursuant to Section 583.410 so prescribes for the court because of the condition of the court calendar or for other reasons affecting the conduct of litigation or the administration of justice.

(Code Civ. Proc. § 583.420, subd. (a)(2).) The California Rules of Court (“CRC”) permit discretionary dismissal under this latter subdivision “if the action has not been brought to trial or conditionally settled within two years after the action was commenced against the defendant.” (CRC Rule 3.1340, subd. 9a.) The rules prescribe consideration of the following non-exclusive factors:

In ruling on the motion, the court must consider all matters relevant to a proper determination of the motion, including:

(1) The court's file in the case and the declarations and supporting data submitted by the parties and, where applicable, the availability of the moving party and other essential parties for service of process;

(2) The diligence in seeking to effect service of process;

(3) The extent to which the parties engaged in any settlement negotiations or discussions;

(4) The diligence of the parties in pursuing discovery or other pretrial proceedings, including any extraordinary

relief sought by either party;

(5) The nature and complexity of the case;

(6) The law applicable to the case,
including the pendency of other litigation under a common set of facts or
determinative of the legal or factual issues in the case;

(7) The nature of any extensions of time
or other delay attributable to either party;

(8) The condition of the court's calendar
and the availability of an earlier trial date if the matter was ready for
trial;

(9) Whether the interests of justice are
best served by dismissal or trial of the case; and

(10) Any other fact or circumstance
relevant to a fair determination of the issue.

The court must be guided by the policies
set forth in Code of Civil Procedure section 583.130.[1]

(CRC Rule 3.1342, subd.
(e).)

The facts set forth in
the moving papers favor dismissal here. This is a simple slip-and-fall case,
with a Complaint alleging one cause of action for premises liability. It has
nonetheless been pending since February 8, 2023, more than three years before Defendants
filed the present motion on May 13, 2026. Originally set for trial on June 23,
2025, the matter has been repeatedly continued based on the withdrawal of
Plaintiff's counsel and Plaintiff's subsequent inability to find counsel to
represent himself. Said withdrawal was based on a breakdown of communication
with Plaintiff's former counsel, which now appears to have replicated itself
with respect to Defendants, who have been unable to secure Plaintiff's
appearance for deposition despite repeated notices and attempts to meet and
confer. And despite the continuances of trial, Plaintiff has filed no
substitution of counsel form to indicate that counsel has been retained.

Plaintiff has served no discovery in this matter, did not appear for the last status conference on April 21, 2026, and has failed to file any opposition to the present motion. This last fact “may be construed by the court as an admission that the motion is meritorious, and the court may grant the motion without a hearing on the merits.” (CRC Rule 3.1342, subd. (b).)[2]

Accordingly, the motion for sanctions is DENIED, and the motion to dismiss is GRANTED. No monetary sanctions are ordered, as such sanctions are sought in connection with the application for discovery sanctions and Plaintiff’s failure to appear for deposition, when no motion to compel such deposition has been made. (See Code Civ. Proc. § 2025.450, subd. (g) [permitting sanctions].)

Superior Court of California

County of Los Angeles

Department 732

SHAHERIAV

KHAM, et al.,

Plaintiff

v.

LOS ANGELES COUNTYMETROPOLITAN

TRANSPORTATION AUTHORITY, et al.,

Defendants.

Case No.:

23STCV02798

Hearing Date: July 1, 2026

[TENTATIVE] RULING RE:

Defendants

ABM Industry Groups, LLC, Morlin Asset Management, LP, and Los Angeles County

Metropolitan Transportation Authority's Motion for Terminating Sanctions or to Dismiss Complaint against Plaintiff Shaheriav Khan

Defendants ABM Industry Groups, LLC, Morlin Asset Management, LP, and Los Angeles County Metropolitan Transportation Authority's Motion for Terminating Sanctions or to Dismiss Complaint against Plaintiff Shaheriav Khan is ruled on as follows. The motion for terminating and monetary sanction is DENIED, but the motion to dismiss under Code of Civil Procedure § 583.410–583.430 is GRANTED.

Defendants to give notice.

Dated: July 1, 2026

Hon.
Richard S. Kemalyan

Judge
of the Superior Court

[1]

“It is the policy of the state that a plaintiff shall proceed with reasonable diligence in the prosecution of an action but that all parties shall cooperate in bringing the action to trial or other disposition. Except as otherwise provided by statute or by rule of court adopted pursuant to statute, the policy favoring the right of parties to make stipulations in their own interests and the policy favoring trial or other disposition of an action on the merits are generally to be preferred over the policy that requires dismissal for failure to proceed with reasonable diligence in the prosecution of an action in construing the provisions of this chapter.” (Code Civ. Proc. § 583.130.)

[2]

The present motion is timely under the rules of service applicable to motions to dismiss under CRC Rule 3.1342, which provides that such a motion must be filed 45 days before the hearing. (CRC Rule 3.1342, subd. (a).)